

Uttaranchal Amendments of the Rules of the Court, 1952

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State of Uttarakhand - Act

Uttaranchal Amendments of the Rules of the Court, 1952

UTTARAKHAND

India

Uttaranchal Amendments of the Rules of the Court, 1952

Rule UTTARANCHAL-AMENDMENTS-OF-THE-RULES-OF-THE-COURT-1952 of 1952

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Uttaranchal Amendments of the Rules of the Court, 1952

1.

[1] Notification No. 162/UHC-2001, dated 6th October, 2001

In exercise of the powers conferred by clause (2) of Article 229 of the Constitution of India and all other powers enabling in that behalf, the Court has been pleased to make the following amendments in High Court Rules, 1952 applicable to Uttaranchal under Section 30 of the U.P. Reorganisation Act, 2000 :

Amendments

The following Amendments be substituted in the rules of the High Court Rules, 1952, applicable to Uttaranchal :

Resolved that the following Amendments be substituted in the Rules of the High Court Rules (Allahabad), applicable to Uttaranchal High Court :

The following Rule (1) (c) be added after Rule 1 (1) (b), Chapter IX of the High Court Rules :

"In appeal titled as Execution Appeal, First Appeal, Appeal arising against the order of the Land Acquisition Reference, Motor Accident Claims, Railway Claims, Workmen Compensation Claims and any other appeal which is not covered under sub-rule (a) (b) of Chapter IX will be numbered and titled as appeal against the Order (A.O.)."

First Appeal arising under Section 96, C.P.C. will be titled and numbered as First Appeal (F.A).

Second Appeal under Section 100, C.P.C. will be titled and numbered as Second Appeal (S.A.).

In Chapter XLI of High Court Rules (Allahabad), the Rules framed under Section 3 of the Destruction of Records Act, 1917 are deleted and the following rules be substituted "Destruction of Records:

1. Unless otherwise ordered by the Court, all original documents including translations and copies of judgments, decrees, orders and other papers which are not required to be preserved, shall be returned to the party producing them after the expiry of the period for filing an appeal or if an appeal is filed, after the disposal of the appeal. The rest of the papers shall be marked, classified and arranged in files for the purpose of despatch to the Record Room as prescribed below :

2.

(i) The papers which are required to be preserved permanently, shall be marked "A" and kept in File "A".

(ii)

The papers which are required to be preserved for 30 years, shall be marked "B" and kept in File "B".

(iii)

The papers which are required to be preserved for 5 years, shall be marked "C" and kept in File "C".

(iv)

The papers which are required to be preserved for 1 year, shall be marked "D" and kept in File "D".

3.

(i) Papers to be preserved permanently. - The following papers shall be permanently preserved :

(1)

All judgments, decrees and final orders of the High Court, except orders summarily dismissing appeals or applications.

(2)

All registers of appeals and applications, including Writ Petitions.

(3)

Such papers, in cases of historical, sociological or scientific value, as in the opinion of the Registrar, should be permanently preserved.

(4)

Judgments, decrees and final orders of the Supreme Court in cases decided by the Uttaranchal High Court.

(5)

Files containing original judgments signed or initialled by the Judge.

(6)

Minutes and important correspondence.

(7)

Inspection notes and important correspondence made on the basis of inspection notes which have entitled administrative representation, departmental enquiry or proceedings.

(ii)

Papers to be preserved for 30 years. - The following papers shall be preserved for 30 years :

(1)

Judgments and/or orders of High Court summarily dismissing appeals and applications.

(2)

Paper Books or prints in cases in which a sentence of death or imprisonment for life is passed.

(3)

Writs communicating final orders in applications decided under Articles 226 and 227 of the Constitution.

(4)

Farad Files, except Farads of applications for interlocutory orders and applications necessary for the progress of the main proceeding.

(iii)

Papers to be preserved for 5 years. - The following papers shall be preserved for 5 years :

(1)

Paper Books other than those specified above in matters heard by the High Court.

(2)

Applications for interlocutory orders, applications necessary for the progress of the proceedings and applications for certificate for leave to appeal to the Supreme Court or to the High Court under the Special Appeal.

(3)

Applications for transfer, bail or stay of proceedings.

(4)

Faradas and Orders made by the High Court in interlocutory applications mentioned in Items (2) and (3) above.

(5)

Reports called for from the lower Courts.

(6)

Writs communicating final orders to the lower Court except interlocutory orders and orders in Writ Petitions.

(7)

Original memorandums of appeals, and cross-objections, and original revision applications, references and applications for review.

(8)

Applications under Articles 226 and 227 of the Constitution.

(9)

Printed copies of the transcript record of the Supreme Court.

(10)

Ferists and receipts of Records and Proceedings by the lower Courts.

(11)

Copies of judgments of lower Courts or Tribunals against which appeals or applications have been made to the High Court.

(12)

Objections to findings on issues called for by the High Court.

(iv)

Papers to be preserved for three years. - The following papers shall be preserved for three years :

The inspection notes and replies to the questionnaire received from the District and Sessions Judges or Inspecting District Judges be destroyed after three years from the date of their full compliance by them.

(v)

Papers to be preserved for one year. - The following papers shall be preserved for one year :

(1)

Writs communicating interlocutory orders of the High Court to the lower Courts.

(2)

Applications for issue of processes etc.

(3)

Applications for stay of execution of orders passed by the lower Courts.

(4)

Applications for bail.

(5)

Presentation Forms.

(6)

Examination Memos.

(7)

Vakalatnamas.

(8)

Orders appointing Advocates in Criminal matters.

(9)

Notices and Returns thereto.

(10)

R and P Writs including requests for extension of time for certifying R and P.

(11)

Requisitions for printing.

(12)

Writs sending down the issues.

(13)

Notices of receipt of findings.

(14)

Correspondence relating to Jail Petitions.

(15)

Writs for bail, arrest, stay, production of accused in Courts and other interlocutory orders.

(16)

Press copies of the record of the lower Courts.

4.

Computation of period for the preservation of Record. - The period prescribed above for the preservation of the records shall be computed from the date of the final decision of the case and in case of appeal to the Supreme Court, from the date of the final decision of the Supreme Court.

5.

Register of cases of which the records are to be destroyed to be maintained in the Record Room. - A register in the form given below shall be maintained showing the number and years of appeals and other cases received in the Record Room of which the records are to be destroyed. The entries for each years shall be signed by the Record Keeper and the Deputy Registrar :

Serial No. of the case

District

Date of receipt in the Record Room

Date of decision of HC/Supreme Court

Dates when due for destruction

Dates when actually destroyed

Name and signature, who destroyed the record

1

2

3

4

5

6

7

6.

Destruction of records to be carried out in the Summer Vacation. - Notice shall be publicly given on the Court Notice Board that parties leave documents and papers with the records of case at their own risk and that they are liable to be destroyed in accordance with the rules for the destruction of records.

7.

The destruction of records shall be carried out in the Vacation each year. The records to be destroyed should, if they cannot be conveniently burnt, be tom up into very small pieces and made quite incapable of use again as documents. The fragments should be sold to the highest bidder, and the proceeds credited to Government.

8.

Notwithstanding anything contained in the foregoing Rules of the Chapter, the cases decided till the date of the enforcement of these Rules, shall continue to have the force of Rules contained in Chapter XLI of High Court Rules (Allahabad), applicable to this Court under the provisions of U. P. Reorganisation Act, 2000, until they are superseded by any subsequent rules of the Court or by the order of the Chief Justice.

9.

Division of Pending Record into Files :

(i)
Each record in a Civil case, Writ Petition and Criminal case, shall be divided into four files, as indicated under Rule 2 of the foregoing Rules.

(ii)
Each paper as it is filed, shall be entered in a general index and shall be marked in the letters 'A', 'B', 'C' and 'D', according to the file to which it belongs.

(iii)
Notwithstanding anything contained in sub-rules (i) and (ii) of Rule 9, the Chief Justice may pass any order which he thinks fit and expedient with regard to the arrangements of the records pending before the Court.

10.

General Provision:

(i)
Notwithstanding anything contained in the foregoing Chapter, any Rule or Rules inconsistent with this Chapter XLI, shall stand repealed and shall be read consistent with Chapter XL."

The following amendments be incorporated in Chapter III of the Allahabad High Court Rules, 1952 :

Rule 1 : Concerning Inspecting Judge is deleted.

Rule 2 : is deleted.

Rule 4 : be substituted by the following:

"(A) Matters for the Chief Justice :

(1)
General supervision and control of Subordinate Courts and Vigilance Cell subject to these Rules.

(2)
Constituting Committees of Judges to examine any specified matter.

(3)
Co-ordination of the work of different Committees.

(4)
Assigning any work of the district as may be considered proper or expedient to any one or more Judges of the High Court.

(5)
Mid-term posting and transfer of the Officers of Subordinate Judiciary.

(6)
Inter-district transfers of the employees of the Subordinate Courts.

(7)
Review of the Judicial work of Subordinate Courts, Tribunals, District Consumer Forum and all other Special Courts and control over their working including inspection thereof which may also be assigned to any Judge of the High Court.

(8)
Recording entries in the character rolls of the officers posted in the District Courts, Tribunals, District Consumer Forum and other Special Courts which may also be assigned to any Judge of the High Court.

(9)
Perusal of Returns, Calendars, Evaluation of Inspection Notes made by the Presiding Officers in respect of their own offices, Audit Reports received from those Courts, Tribunals etc. and to make orders thereon.

(10)
Deciding representations of the Judicial Officers of the Subordinate Courts made within one month from the date of communication to them of the Adverse Remarks, if any, by the District Judge concerned.

(11)
Grant of casual leave (including special casual leave) and permission to leave the Headquarters to the District and Sessions Judges, Presiding Officers of the Tribunals and Special Courts, by whatever name designated. It may also be assigned to any Judge of the High Court.

(12)
Grant of earned leave to the Judicial Officers. It may also be assigned to any Judge of the High Court.

(13)

Deciding appeal against the punishment imposed on the employees of the Subordinate Courts.

(14)

Creation and abolition of posts.

(15)

Consideration of the preliminary reports in disciplinary matters and directing holding of disciplinary inquiry against the officers subordinate to the High Court.

(16)

Suspension of the officers subordinate to the High Court pending disciplinary proceedings.

(17)

Award of censure entries to the officers subordinate to the High Court.

(18)

Provisional Promotion of the officers to the cadre of Civil Judge (Senior Division) and the Chief Judicial Magistrate.

(19)

Direction of issuance of the Circular Letters and General Letters for the guidance of the Subordinate Courts.

(20)

To decide matters in which opinion of the High Court is sought by the Union or State Government.

(21)

Permission to cross efficiency bar to the officers subordinate to the High Court.

(22)

Any other matter not covered under the powers of the Full Court.

(B)

Matter for the Full Court:

(1)

Deputation of officers of Subordinate Judiciary and their withdrawal.

(2)

Annual posting and transfers of the officers of Subordinate Judiciary.

(3)

Confirmation and promotion to selection grade, supertime scale and reversion of the officers of the Subordinate Judiciary.

(4)

Investiture of powers of officers of the Subordinate Judiciary.

(5)

Finalisation of list of holidays, working hours, vacations and calendars of the High Court.

(6)

Fixing working hours, vacation of Subordinate Courts, calendar and list of holidays of Subordinate Courts.

(7)

Direct recruitment to Higher Judicial Service and recommendations to the Government regarding promotion to Higher Judicial Service.

(8)

Grant of supertime scale to the officers of Higher Judicial Service, reduction in rank, premature retirement.

(9)

Termination of services of probationers and temporary officers of subordinate Judiciary.

(10)

Consideration of final reports of disciplinary inquiries in respect of officers of the Subordinate Judiciary and taking decisions as to punishment.

(11)

Proposals as to legislation and changes in law.

(12)

Amendment of Rules of Court.

(13)

Amendment of Rules applicable to the Subordinate Courts.

(14)

General policy matters.

(15)

Consideration of general annual report of Administration of Justice to be sent to the Government.

(16)

Consideration of any representation against the adverse remarks awarded by the Chief Justice or by any other Judge of the High Court to an officer of Subordinate Judiciary.

(17)

Any matter which the Chief Justice or any Judge of the High Court considers fit to be placed before the Full Court.

(18)

Any other matter which is not covered under any of the above heads.

Note. - The Full Court shall also have the power to review any decision taken by the Chief Justice under the head 'A'.

Following should be substituted in place of existing Rule 5 :

"The business of Full Court may be transacted either at a meeting or by circulation provided that if any Judge in the case of matters relating to the Full Court desires that the matter may be placed in a meeting, it shall be so placed."

Following should be substituted in place of existing Rule 6:

"Procedure for circulation. - So far as convenient, papers for circulation shall be sent by the Registrar to the Judges in their order or seniority, commencing with the Junior Judge. The Registrar shall, so far as practicable, obtain from each Judge such papers within three days from the date when the same are sent to him. The Registrar shall endorse on the papers the date when they are sent to and the date when are received back from each Judge. It shall not be necessary to send papers to any Judge who is not for the time being at the station."

Existing Rule 7 is retained in its present form.

Following is substituted for existing Rule 8 :

"Papers to be submitted to Chief Justice after circulation. - After any papers have been circulated for opinion, they shall be submitted again to the Chief Justice and he may either direct that the opinion of the majority of the Judges including his own be given effect to or lay the matter for consideration before a Judges meeting."

Following is substituted for the existing Rule 9 :

"Full Court Meeting. - The Chief Justice may call a Full Court meeting whenever there is business to be disposed of.

Provided :

(1)

that a Full Court meeting shall be called once every three months excluding winter vacation, and

(2)

that if a request is made to the Chief Justice by at least two Judges to call such a meeting, it shall be called within a week of the request."

Rule 10 is deleted .

Existing Rule 11 is substituted by the following:

"(a) The Registrar shall give notice to the Judges concerned, except in a case of emergency, at least three days notice of the Full Court meeting of the date, place and hour when such meeting would be held and of the business to be brought before such meeting. In a case of emergency, the Registrar shall give the best notice he can.

(b)

The Agenda of the Full Court meeting shall ordinarily be circulated to all the Judges before the meeting and they may, if necessary, express their views in writing on any of the matter for consideration of the Full Court, as the case may be.

(c)

As soon as the business of the Full Court is over the minutes of the Full Court will be circulated to all the Judges."

Following is substituted for the existing Rule 12 :

"Quorum. - The quorum necessary for the transaction of the business shall be two in the cast of the meeting of the Full Court."

By order of the Court

(J.C.S. Rawat)

Register.

[2] Notification No. 163/UHC-2001, dated 6th October, 2001

In exercise of the powers conferred by clause (2) of Article 229 of the Constitution of India and all other powers enabling in that behalf, the Court has been pleased to make the following amendments in High Court Rules, 1952, applicable to Uttaranchal under Section 30 of the I.P. Reorganisation Act, 2000 :

Amendments

The following Amendments be substituted in the rules of the High Court Rules, 1952, applicable to Uttaranchal.

Add the sub-rule (6) in Chapter VII after sub-rule (5) in Rule 1. The following guidelines laid down in the Supreme Court's Judgment, Criminal Appeal Nos. 389 of 1998, 387-88 of 1998 and 199 of 1999, Anil Rai v. State of Bihar, be incorporated in the High Court Rules, 1952 :

"(6) - (i) In a case where the judgment is reserved and is pronounced later, a column be added in the judgment where, on the first page, after the cause-title date of reserving the judgment and date of pronouncing it be separately mentioned by the Bench Secretary concerned.

(ii)

The Bench Secretary/Reader of the various Benches in the High Court of Uttaranchal to furnish every month the list of cases in the matters where the judgments reserved are not pronounced within six weeks.

(iii)

On noticing that after conclusion of the arguments the judgment is not pronounced within a period of two months the Chief justice shall draw the attention of the Bench concerned to the pending matter. The Chief Justice may also see the desirability of circulating the statement of such cases in which the judgments have not been pronounced within a period of six weeks from the date of conclusion of the arguments amongst the Judges of the High Court for their information. Such communication be conveyed as confidential and in a sealed cover.

(iv)

Where a judgment is not pronounced within three months from the date of reserving judgment any of the parties in the case is permitted to file an application in the High Court with prayer for early judgment. Such application as and when filed, shall be listed before the Bench concerned within two days excluding the intervening holidays.

(v)

If the judgment, for any reason, is not pronounced within a period of six months any of the parties of the said list shall be entitled to move an application before the Chief Justice of the High Court with a prayer to withdraw the said case and to make it over to any other Bench for fresh arguments. It is open to the Chief Justice to grant the said prayer or to pass any other order as he deems fit in the circumstances."

By order of the Court

(J.C.S. Rawat)

Register.

[3] Notification No. 164/UHC-2001, dated 6th October, 2001

In exercise of the powers conferred by clause (2) of Article 229 of the Constitution of India and all other powers enabling in that behalf, the Court has been pleased to make the following amendments in Allahabad High Court Officers and Staff (Conditions of Service and Conduct) Rules, 1976, applicable to Uttaranchal under Section 30 of the U.P. Reorganisation Act, 2000 :

Amendments

The following Amendment be substituted in the Rules of the Allahabad High Court Officers and Staff (Conditions of Service and Conduct) Rules, 1976, applicable to Uttaranchal :

The following Rule be added in Chapter IV, Rule 8 after sub-clause (c) :

"(cc)

Console Operator-cum-Data Entry Assistant

...

(i)

By direct recruitment through competitive examination conducted by the appointing authority or in any manner so directed by the Chief Justice.

(ccc)

System Analyst-cum-Programmer

...

(i)

By direct recruitment through competitive examination conducted by the appointing authority or in any manner so directed by the Chief Justice."

Rule 9, Clause (b) in Chapter IV is deleted and substituted as under:

"(b)

Personal Assistant

...

Must possess good knowledge of English Shorthand and Type-writing with minimum speed of 40 words per minute in English and 100 words in English Shorthand dictation per minute. Preference will be given to those having good knowledge of Hindi Shorthand and Type-writing with minimum speed of 30 words in Hindi Type-writing per minute and 80 words in Hindi Shorthand dictation per minute and knowledge of Computer operation."

Sub-clauses VI and VII of Rule 9 in Chapter IV be substituted after sub-clause (v) :

"(vi)

Console Operator-cum Data Entry Assistant

...

(i)

Must possess a Bachelor's Degree of a University established by law in India or a qualification recognised as equivalent thereto.

...

(ii)

Must possess a speed of not less than 8000 key Depressions per hour for Data Entry work.

Note 1 :

Qualifications are relaxable at the discretion
"of the Chief Justice.

Note 2 :

The speed of 8000 key Depressions per hour for Data Entry work is to be judged by conducting a speed test on the EDP Machine(s) by the competent authority.

(vii)

System Analyst-cum-Programmer

...

1.

Must possess a Bachelor's Degree in Engg. or M.Sc. Maths or Statistics of a University established by law in India or a qualification recognised as equivalent thereto.

...

2.

Two years Experience in any Institute or any other establishment or Corporation or Undertaking or any other department in the sphere of computer software. Degree in Computer Technology by a recognised Institute or a University established by law in India or a qualification recognised as equivalent thereto."

Rule 20 (b) (i) is deleted and substituted as under:

"(b) (i)

Deputy Registrar

...

(i)

By promotion from amongst Section Officers of General Officer. Bench Secretaries Grade 1 and Private Secretaries having three years experience as such:

Provided that-

(1)

the appointment shall be so regulated that out of the existing posts of Deputy Registrar 50% of the posts shall be filled from amongst the Section Officers, 25% from amongst Bench Secretaries, Grade 1 and 25% from amongst the Private Secretaries. In case a fraction of a post, the matter as to whom it should go shall rest in the discretion of the Chief Justice.

(2)

notwithstanding anything contained in proviso

(1) above, any Deputy Registrar may also be appointed by the Chief Justice as he deems fit and expedient."

By order of the Court

(J.C.S. Rawat)

Register.

[4] Notification No. 03/UHC-2002, dated 21st March, 2002

In exercise of the powers conferred by clause (2) of Article 229 of the Constitution of India and all other powers enabling in that behalf, the Court has been pleased to make the following amendments in High Court Rules, 1952 applicable to Uttaranchal under U. P. Reorganisation Act, 2000 :

Amendment

Add the following Rule 22, in Chapter IV of the Allahabad High Court Rules, 1952, applicable to Uttaranchal after Rule 21, in Chapter IV :

"Notwithstanding anything contained in the foregoing rules of Chapter IV of the High Court Rules, the affidavits for the purpose of any cause, appeal or matter before the High Court may be sworn before a Notary."

This amendment will come into force with immediate effect.

By order of the Court

(J.C.S. Rawat)

Register.

[5] Notification No. 04/UHC-2002, dated 21st March, 2002

In exercise of the powers conferred by clause (2) of Article 229 of the Constitution of India and all other powers enabling in that behalf, the Court has been pleased to make the following amendments in High Court Rules, 1952 applicable to Uttaranchal under U.P. Reorganisation Act, 2000 :

Amendments

Add sub-clause (23) after sub-clause (22) in Chapter III, Rule 4 (A) of High Court Rules, 1952 applicable to Uttaranchal, as under:

1. "(23) Deputation of Officers of subordinate Judiciary and their withdrawal."

2. Delete sub-clause (1) of Rule 4 (B) of Chapter III of the High Court Rules, 1952.

This amendment will come into force with immediate effect.

By order of the Court

(J.C.S. Rawat)

Register.

[6] Notification No. 103/UHC (Admn.)-2002, dated 19th August, 2002

In exercise of the powers conferred by clause (2) of Article 229 of the Constitution of India and all other powers enabling in that behalf, the Hon'ble the Chief Justice, has been pleased to make the following amendments in Allahabad High

Court Officers and Staff (Conditions of Services and Conduct) Rules, 1976 applicable to Uttaranchal under Section 30 of the U. P. Reorganisation Act, 2000:

Amendments

That word 'and' be added after the word 'thereto' in sub-clause (vi) paragraph (i) of Rule 9 in Chapter IV. Clause (I-a) be added after paragraph (i) of sub-clause (vi) of Rule 9 in Chapter IV as under :

"(i-a) The candidate must possess the DOEACC 'A' level or equivalent post graduate diploma from UGC approved University/Government Polytechnic".

That para 1 of sub-clause (vii) of Rule 9 in Chapter IX the word and' be added after the word thereto.

After paragraph (i) of sub-clause (vii) of Rule 9 in Chapter IV a new paragraph (1-a) be added as follows :

"1-a. The candidate must possess DOEACC 'B' level or MCA/B.E.

(CS/IT)/B. Tech (CS/IT) from UGC approved University/A.I.C.T.E."

This Notification shall come into force with immediate effect.

By order of the Court

(J.C.S. Rawat)

Register.

[7] Notification No. 151/UHC/Admn.-2001, dated 31st, October, 2002

In exercise of the powers conferred by clause (2) of Article 229 of the Constitution of India and all other powers enabling in that behalf, the Court has been pleased to make the following amendments in High Court Rules, 1952 applicable to Uttaranchal under U. P. Reorganisation Act, 2000 :

Amendment

Add the following proviso after Rule 5 (2) of Chapter XXII of High Court Rules, 1952, as under :

"Provided that in case of urgency the caveator shall send a notice by urgent telegram to the person by whom application or petition is expected to be made and shall submit a proof of service by furnishing copy of the telegram and postal receipt thereof and also postal receipt of registered post alongwith an affidavit. The caveator may lodge caveat after the telegram is sent."

This amendment will come into force with immediate effect.

By order of the Court

(J.C.S. Rawat)

Register.

[8] Notification No. 152/UHC/Admn.-2002, dated 31st October, 2002

In exercise of the powers conferred by clause (2) of Article 229 of the Constitution of India and all other powers enabling in that behalf, the Court has been pleased to make the following amendments in High Court Rules, 1952 applicable to Uttaranchal under U. P. Reorganisation Act, 2000 :

Amendment

In Rule 4 (a) of Chapter XXXV-E of the Allahabad High Court Rules, 1952, applicable to Uttaranchal, clause (a) be deleted and in its place the following be substituted:

"4. (i) : Every case relating to the Civil Contempt of a Division Bench shall be presented before the Division Bench constituted for that purpose.

(ii)

Every case relating to the Civil Contempt of a Single Bench shall be presented before a Bench of Single Judge constituted for that purpose."

This amendment will come into force with immediate effect.

By order of the Court

(J.C.S. Rawat)

Register.

[9] Notification No. 43/UHC/Admn.-A-2003, dated 15th April, 2003

In exercise of the powers conferred by Article 225 read with Article 235 of the Constitution of India and all other powers enabling in that behalf, the Court has been pleased to make the following amendments in High Court Rules, 1952, applicable to Uttaranchal under U. P. Reorganisation Act, 2000 :

Amendments

1. Rule 1 in Chapter III of Rules of Court 1952, applicable in Uttaranchal is incorporated as under:

"There shall be two Administrative Judges in the State who shall be nominated by the Chief Justice. The Administrative Judge, Eastern Zone will exercise the powers in respect of the Districts of Almorah, Bageshwar, Champawat, Nainital, Pithoragarh and Udham Singh Nagar. The Administrative Judge, Western Zone will exercise the powers in respect of the Districts of Chamoli, Dehradun, Haridwar, Pauri Garhwal, Rudrapur, Tehri Garhwal and Uttarkashi."

2. In Rule 4 of Chapter III of the Rules of Court, 1952, Clause (c) shall be added as Under:

"(c) Matters within the powers of Administrative Judge-

(1)

Grant of casual leave (including special casual leave) and permission to leave headquarters to the District Judges and Presiding Officers of Tribunals.

(2)

Grant of earned leave to the Officers posted in the zone under the charge of Administrative Judge.

(3)

Perusal of returns, calendars, evaluation of inspection reports made by the Presiding Officers in respect of their own offices and audit reports.

(4)

Disposal of departmental appeals against orders of punishment imposed on and representations etc. of the employees of the Subordinate Courts.

(5)

Annual confidential remarks to the Judicial Officers except that of the District and Sessions Judges and the officers holding post equivalent thereto.

(6)

Inspection of the courts and offices of the Districts with the zone of the Administrative Judges."

3. In Clause (A) of Rule 4 of Chapter III, powers mentioned in clause (c) shall stand delegated by the Chief Justice from his powers mentioned in said clause.

4. In the Rules of Court, 1952, as applicable to Uttaranchal wherever the word "Registrar" occurs it should be re-designated as "Registrar General" who shall exercise all the powers in this behalf.

This amendment will come into force with immediate effect.

By order of the Court

(Prafulla C. Pant)

Register.

[10] Notification No. 44/UHC/Admn.-A, 2003, dated 10th April, 2003

In exercise of the powers conferred by Article 225 of the Constitution of India and all other powers enabling in that behalf, the Court has been pleased to make the following amendments in High Court Rules, 1952 applicable to Uttaranchal under U. P. Reorganisation Act, 2000 :

Amendments

1. Clause (2) in Rule 5 in Chapter XXII of Rules of Court, 1952 be substituted as under:

"After receipt of the caveat the same shall be sent to the Stamp Reporter and when writ petition/appeal etc. is filed, the caveat shall be listed and laid before Bench concerned alongwith writ petition/appeal etc. showing the name of the counsel for the respondent/caveator also."

The existing clauses (2), (3), (4) and proviso to Rule 5 of Chapter XXII of Rules of Court, 1952 be deleted and notification No. 151/UHC/Admn.-2002, dated 31st October, 2002 shall stand superseded.

2. In Rule 4 relating to jurisdiction of Contempt in Chapter XXXV-E of Rules of Court, 1952, as existed on 9th November, 2000, is restored and amendment made, vide Court's Notification No. 152/UHC/Admn.-2002, dated 31st October, 2002 shall stand superseded.

3. In Rule 32 (e) of Chapter VIII of Rules of Court, 1952, the following words are hereby added :

"All India Reporter (AIR) free of cost'. Also word each' be added between the words 'copy' and 'for' in the said Clause (e) of Rule 32."

4. In Clause (I) of Rule 32 of Chapter VIII after the words "Indian Law Reporter (Allahabad Series)" the expression "All India Reporter" be added.

These amendments will come into force with immediate effect.

By order of the Court

(Prafulla C. Pant)

Register.

[11] Notification No. 92/UHC/Admn.-A-2003, dated 22nd May, 2003

In exercise of the powers conferred by Article 225 of the Constitution of India and all other powers enabling in that behalf, the Court has been pleased to make the following amendments in High Court Rules, 1952, applicable to Uttaranchal under U. P. Reorganisation Act, 2000 :

Amendments

1. The existing Clause (e) of Rule 5 of Chapter I of Allahabad High Court Advocate's Clerks (Registration and Conduct) Rules in Chapter XXVI of Rules of Court, 1952 (applicable to Uttaranchal), be deleted and in its place following be substituted:

"(e) has worked for atleast two years with any Advocate in the High Court and possesses certificate issued by the Advocate."

2. Rule 7 of Chapter as above in Chapter XXVI of Rules of Court, 1952 regarding preparation of panel by holding examination, be deleted; And in Rule 9 of same aforesaid Chapter the expression :

"Whose name appears in the panel prepared under Rule 7 and who has after such empanelment worked for one year in the office of an advocate under a registered advocate's clerk" be deleted.

These amendments will come into force with immediate effect.

By order of the Court

(Prafulla C. Pant)

Registrar General

[12] Notification No. 254/4 HC/Admn.-A-2003 dated 30th October, 2003.

In exercise of the powers conferred by Article 225 of the Constitution of India and all other powers enabling in that behalf, the court has been pleased to make the following amendment in High Court Rules, 1952, applicable to Uttaranchal under U. P. Reorganization Act, 2000 :

Amendment

1. In existing Rule 13 of Chapter V of the Rules of Court, 1952, proviso shall be added as under :

"Provided that an application for restoration of a case dismissed in default, need not be listed before the same bench for disposal."

This amendment will come into force with immediate effect.

By order of the Court

(Prafulla C. Pant)

Registrar General

[13] Notification No. 158/UHC/Admn.-A-2004, dated 27th September, 2006

In exercise of the powers conferred by Article 225 of the Constitution of India and all other powers enabling in that behalf, the Court has been pleased to make the following amendment in High Court Rules 1952, applicable to Uttaranchal under U.P. Reorganisation Act, 2000 :

Amendment

1. Rule 14 of Chapter V of the Rules of the Court, 1952, is deleted.

This amendment will come into force with immediate effect.

By order of the Court

(V. K. Maheshwari)

Registrar General

[14] Notification No. 88/UHC/Admn.-A/2005, dated 30th July, 2005 published in the Gazette of Uttaranchal (Bhag 1-ka), dated 27th August, 2005.

In exercise of the powers conferred by the Article 225 read with Article 235 of the Constitution of India and all other powers enabling in that behalf, the Court has been pleased to make the following amendments in High Court Rules, 1952, applicable to Uttaranchal under U.P. Reorganisation Act, 2000 :

Amendments

Rule 1 of Chapter III shall stand amended as follows :

"1. The Chief Justice may assign each district to the administrative charge of a Hon'ble Judge nominated by him as the Administrative Judge for such district(s). The Administrative Judge will be incharge of the district(s) assigned to him for

such period as the Chief Justice may specify."

Rule 4 of Chapter III shall stand amended as follows :

"4. Allocation of administrative work. - The following shall be the allocation of executive and administrative work between the Chief Justice, Full Court and Administrative Judge."

(A)

Matters for the Chief Justice :

(1)

General supervision and control of Subordinate Courts and Vigilance Cell subject to these Rules.

(2)

Constituting Committees of Judges to examine any specified matter.

(3)

Co-ordination of the work of different Committees.

(4)

Assigning any work of the district as may be considered proper or expedient to any one or more Judges of the High Court.

(5)

Mid-term posting and transfer of the Officers of Subordinate Judiciary.

(6)

Inter-district transfers of the employees of the Subordinate Courts.

(7)

Review of the Judicial work of Subordinate Courts, Tribunals, District Consumer Forum and all other Special Courts and control over their working including inspection thereof, which may also be assigned to any Judge of the High Court.

(8)

Recording entries in the character rolls of the officers posted in the District Courts, Tribunals, District Consumer Forum and other Special Courts which may also be assigned to any Judge of the High Court.

(9)

Perusal of Returns, Calendars, Evaluation of Inspection Notes made by the Presiding Officers in respect of their own officers, Audit Reports received from those Courts, Tribunals etc. and to make orders thereon.

(10)

Deciding representations of the Judicial Officers of the Subordinate Courts made within one month from the date of communication to them of the Adverse Remarks, if any, by the District Judge concerned.

(11)

Grant of casual (including special casual leave) and permission to leave the Headquarters to the District and Sessions Judges, Presiding Officers of the Tribunals and Special Courts, by whatever name designated. It may also be assigned to any Judge of the High Court.

(12)

Grant of earned leave to the Judicial Officers. It may also be assigned to any Judge of the High Court.

(13)

Deciding appeal against the punishment imposed on the employees of the Subordinate Courts.

(14)

Creation and abolition of posts.

(15)

Consideration of the preliminary report in disciplinary matters and directing holding of disciplinary inquiry against the officers subordinate to the High Court.

(16)

Suspension of the officers subordinate to the High Court pending disciplinary proceedings.

(17)

Award of censure entries to the officers subordinate to the High Court.

(18)

Provisional promotion of the officers of the cadre of Civil Judge (Senior Division) and the Chief Judicial Magistrate.

(19)

Direction of issuance of the Circular Letters and General Letters for the guidance of the Subordinate Courts.

(20)

To decide matters in which opinion of the High Court is sought by the Union or State Government.

(21)

Permission to cross efficiency bar to the officers subordinate to the High Court.

(22)

Any other matter not covered under the powers of the Full Court.

(23)

Deputation of Officers of Subordinate Judiciary and their withdrawal.

(B)

Matters for the Full Court:

(1)

Deputation of officers of Subordinate Judiciary and their withdrawal.

(2)

Annual posting and transfers of the officers of Subordinate Judiciary.

(3)

Confirmation and promotion to Selection grade, Supertime scale and Reversion of the officers of the Subordinate Judiciary.

(4)

Investiture of powers of officers of the Subordinate Judiciary.

(5)

Finalization of list of holidays, working hours, vacations and calenders of the High Court.

(6)

Fixing working hours, vacation of Subordinate Courts, calender and list of holidays of Subordinate Courts.

(7)

Direct recruitment to Higher Judicial Service and recommendations to the Government regarding promotion to Higher Judicial Service.

(8)

Grant of Supertime scale to the officers of Higher Judicial Service, reduction in rank, premature retirement.

(9)

Termination of services of probationers and temporary officers of Subordinate Judiciary.

(10)

Consideration of final reports of disciplinary inquiries in respect of officers of the Subordinate Judiciary and taking decisions as to punishment.

(11)

Proposals as to legislation and changes in law.

(12)

Amendment of Rules of Court.

(13)

Amendment of Rules applicable to the Subordinate Courts.

(14)

General policy matters.

(15)

Consideration of general annual report of administration of justice to be sent to the Government.

(16)

Consideration of any representation against the adverse remarks awarded by the Chief Justice or by any other Judge of the High Court to an officer of Subordinate Judiciary.

(17)

Any matter, which the Chief Justice or any Judge of the High Court considers, fit to be placed before the Full Court.

(18)

Any other matter, which is not covered under any of the above heads.

(C)

Matters within the powers of Administrative Judge

(1)

Grant of casual leave (including special casual leave) and Permission to leave headquarters to the District Judges and Presiding Officers of Tribunals.

(2)

Grant of earned leave to the Officers posted in the Zone under the charge of Administrative Judge.

(3)

Perusal of returns, calenders, evaluation of inspection reports made by the Presiding Officers in respect of their own offices and audit reports.

(4)

Disposal of departmental appeals against orders of punishment imposed on and representations etc. of the employees of the Subordinate Courts.

(5)

Annual confidential remarks to the Judicial Officers except that of the District and Sessions Judges and the officers holding post equivalent thereto.

(6)

Inspection of the Courts and offices of the Districts with the Zone of the Administrative Judges.

This amendment will come into force with immediate effect.

By order of the Court

V. K. Maheshwari

Registrar General

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